

23STCV31143 23STCV31143

County: los-angeles

Division: Civil Law and Motion

Department: 729

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Case Number: 23STCV31143 Hearing Date: August 21, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

ASTA

JONASSON,

vs.

VIN

DIESEL, et al.

Case No.:

23STCV31143

Hearing Date: August 21, 2026

Defendants

One Race Productions, Inc.'s, One Race Films, Inc.'s, Vin Diesel's, and

Samantha Vincent's unopposed motion for an order stating the

"Confidential" designation of the transcript and video recording of the

September 3, 2025, deposition of Vin Diesel be maintained is denied.

Defendants

One Race Productions, Inc.'s, One Race Films, Inc.'s, Vin Diesel's, and Samantha Vincent's unopposed motion for and order stating the "Confidential" designation of the transcript and video recordings of: (1) the June 19, 2025, the deposition of non-party Thyrle Thai; (2) the June 23, 2025, the deposition of nonparty Valentino Morales; and (3) the August 26, 2025, the deposition of non-party Paloma Jimenez is denied.

Defendants One Race Productions, Inc. ("ORP"), One Race Films, Inc. ("ORF"), Vin Diesel ("Diesel"), and Samantha Vincent ("Vincent") (collectively, "Defendants") move unopposed for an order stating the "Confidential" designation of the transcript and video recording of the September 3, 2025, deposition of Diesel is to be maintained. (Notice Motion Diesel Depo, pg. 1; C.C.P §§2017.020, 2019.030, 2023.010, 2025.420.) Defendants move on the grounds that pursuant to Paragraph 6 of the Court's July 25, 2024, Protective Order, these materials are properly deemed confidential pursuant to applicable law, in that there is a high risk of public disclosure of these materials, which would violate the constitutional right to privacy of and constitute unwarranted annoyance, embarrassment, or oppression. (Notice Motion Diesel Depo, pg. 1.)

Defendants

move unopposed for and order stating the "Confidential" designation of the transcript and video recordings of: (1) the June 19, 2025, the deposition of non-party Thyrle Thai; (2) the June 23, 2025, the deposition of nonparty Valentino Morales; and (3) the August 26, 2025, the deposition of non-party Paloma Jimenez are to be maintained. (Notice Motion Non-party Depos, pg. 1; C.C.P §§2017.020, 2019.030, 2023.010, 2025.420.) Defendants move on the grounds that pursuant to Paragraph 6 of the Court's July 25, 2024, Protective Order, these materials are properly deemed confidential pursuant to applicable law, in that there is a high risk of public disclosure of these materials, which would violate the constitutional right to privacy of and constitute unwarranted annoyance, embarrassment, or oppression. (Notice Motion Non-party Depos, pg. 1.)

Background

On December 21, 2023, Plaintiff filed a Complaint against Defendants, asserting ten causes of action: (1)

Discrimination in Violation of the FEHA; (2) Hostile Work Environment in Violation of the FEHA; (3) Retaliation in Violation of the FEHA; (4) Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of the FEHA; (5) Retaliation in Violation of Labor Code §1102.5; (6) Retaliation in Violation of Labor Code §98.6; (7) Wrongful Termination in Violation of Public Policy; (8) Sexual Battery; (9) Negligent Supervision and Retention; and (10) Intentional Infliction of Emotional Distress. On March 8, 2024, ORF filed its Answer to the Complaint. On March 25, 2024, the remaining Defendants each filed an Answer to the Complaint.

On July 25, 2024, the Court entered a protective order pursuant to the parties' stipulation. On June 3, 2025, the Court granted Defendants' Motion for Judgment on the Pleadings without leave to amend as to Plaintiff's first four causes of action arising under FEHA.

On May 28, 2025, the deposition of Defendant Vincent was taken by Plaintiff's counsel. (Decl. of Hardy ¶3.) Defendants designated the entire transcript and video recording of the deposition as "Confidential" pursuant to Paragraph 3 of the Protective Order. (Decl. of Hardy ¶3.) On June 19, 2025, Plaintiff's counsel took the deposition of non-party Thyrale Thai. (Decl. of Hardy ¶4.) Defendants designated the entire transcript and video recording of the deposition as "Confidential" pursuant to Paragraph 3 of the Protective Order. (Decl. of Hardy ¶4.) On June 23, 2025, Plaintiff's counsel took the deposition of non-party Valentino Morales. (Decl. of Hardy ¶5.) Defendants designated the entire transcript and video recording of the deposition as "Confidential" pursuant to Paragraph 3 of the Protective Order. (Decl. of Hardy ¶5.)

On June 23, 2025, Defendants filed a motion for protective order with respect to the conduct and location of Diesel's deposition. On July 1, 2025, the Court held a hearing on Plaintiff's ex parte application to compel the deposition of Diesel, as well as an Informal Discovery Conference regarding various discovery disputes, including Plaintiff's noticed deposition of non-party Paloma Jimenez. This Court issued an order setting Diesel's deposition for September 3, 2025, at the office of Defendants' counsel, limited to 7 hours in length. This Court ordered the deposition of non-party Paloma Jimenez to take place by September 12, 2025, and limited the deposition to three hours in length via remote video.

On August 26, 2025, Plaintiff's counsel took the deposition of non-party Paloma Jimenez. (Decl. of Hardy ¶7.) Defendants designated the entire transcript and video recording of the deposition as "Confidential" pursuant to Paragraph 3 of the Protective Order. (Decl. of Hardy ¶7.) On September 3, 2025, Plaintiff's counsel took Defendant Diesel's deposition. (Decl. of Hardy ¶8.) Defendants designated the entire transcript and video recording of the deposition as "Confidential" pursuant to Paragraph 3 of the Protective Order. (Decl. of Hardy ¶8.)

Defendants filed the instant motions on October 31, 2025. As of the date of this hearing no opposition has been filed.

Legal Standard

Information obtained through pretrial discovery does not automatically become public property. The court may, through protective orders, prohibit disclosure of deposition testimony that has not yet been introduced into evidence at a public trial. (*Seattle Times Co. v. Rhinehart* (USSC 1984) 467 U.S. 20, 33.)

Once deposition testimony has been publicly disclosed, however (e.g., at a public hearing or trial), it is in the public domain, and further restraints on a party's use or republication of it are improper. (*Coalition Against Police Abuse v. Superior Court* (1985) 170 Cal.App.3d 888, 902.)

Discussion

Defendants ask this Court to "maintain[] the 'Confidential' designations of the pretrial discovery materials" for an existing protective order, which Defendants have not demonstrated has been breached. Defendants seek speculative relief from harm that has not occurred. Accordingly, Defendants' motions are denied.

Conclusion

Defendants' unopposed motion regarding

the transcript and video recording of the September 3, 2025, deposition of Vin Diesel is denied.

Defendants' unopposed motion regarding the transcript and video recordings of: (1) the June 19, 2025, the deposition of non-party Thyrle Thai; (2) the June 23, 2025, the deposition of nonparty Valentino Morales; and (3) the August 26, 2025, the deposition of non-party Paloma Jimenez is denied.

Moving Party to give notice.

Dated:

August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court